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Case Number: 24STCV26461 Hearing Date: July 20, 2026 Dept: 509

Nicole Kennedy v. Browning Ferris Industries of California, Inc., et al.

MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

MOVING PARTY: Plaintiff Nicole Kennedy

RESPONDING PARTY(S): Defendants Browning Ferris Industries of California, Inc. and Fred Jones

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Nicole Kennedy (Plaintiff) worked for defendants Browning Ferris Industries of California, Inc. and Fred Jones (collectively, Defendants). Plaintiff alleges wrongful termination among eight other causes of action stemming from alleged discrimination, wage and hour violations, and harassment.

Plaintiff now brings this motion to file a second amended complaint (SAC) to, among other things, add Republic Services, Inc. as a new defendant and add a new claim for failure to prevent discrimination, harassment and/or discrimination. Defendants opposed.

TENTATIVE RULING:

Plaintiff's Motions for Leave to File a Second Amended Complaint is GRANTED.

The Second Amended Complaint must be separately filed and served to all current parties within 10 days.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Motion For Leave to Amend First Amended Complaint

I. Legal Standard

If a plaintiff wishes to amend a complaint after the answer has been filed or after the demurrer has been filed and after the hearing on the demurrer, or if he or she has already amended the complaint “of course,” permission of the court must be obtained before the amendment will be allowed. (Code Civ. Pro. §§ 473, subd. (a)(1), 576.)

Motions for leave to amend the pleadings are directed to the sound discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading” (Code Civ. Pro. § 473, subd. (a)(1); see Code Civ. Pro. § 576.) Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. (See *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) Absent prejudice to the adverse party, the court may permit amendments to the complaint “at any stage of the proceedings, up to and including trial.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes omitted].)

Although denial is rarely justified, a judge has discretion to deny leave to amend if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (*Morgan v. Sup.Ct.* (1959) 172 Cal.App.2d 527, 530; see also *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490). An opposing party is prejudiced where the amendment would necessitate a trial delay along with a loss of critical evidence, added preparation expense, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. The court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See *California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390).)

II. Analysis

Plaintiff moves for leave to file a SAC. By the amended complaint, Plaintiff states that “[t]he amendments will (1) add Republic Services, Inc. as a new defendant, (2) add a new claim for failure to prevent discrimination, harassment and/or discrimination, (3) correct typographical and clerical errors, (4) conform the facts to evidence and (5) add to the Prayer a request for preliminary and permanent injunction for purposes of enjoining Browning Ferris Industries of California, Inc. and Republic Services, Inc. from engaging in unfair competition, including but not limited to, deceptive business practices and disguising the joint employer and/or alter ego status of Republic Services, Inc. with its subsidiaries” (Not of Mot.)

In support of leave to amend, Plaintiff asserts the “The effect of Plaintiff’s amendments to her First Amended Complaint are to: (1) add Republic Services, Inc. as a new defendant, (2) add a new claim for failure to prevent discrimination, harassment and/or discrimination, (3) correct typographical and clerical errors, (4) conform the facts to evidence and (5) add to the Prayer a request for preliminary and permanent injunction for purposes of enjoining Browning Ferris Industries of California, Inc. and Republic Services, Inc. from engaging in unfair competition, including but not limited to, deceptive business practices and disguising the joint employer and/or alter ego status of Republic Services, Inc. with its subsidiaries.” (Conkle Decl. ¶14.) “The amendments are necessary and proper because Plaintiff recently discovered that she was actually a Republic Services, Inc. employee and not a Browning Ferris Industries of California, Inc. employee as she had been led to believe throughout her employment, and throughout this litigation until recently because Defendant Browning Ferris Industries of California, Inc., Republic Services, Inc. and their counsel were and are engaged in a scheme to unfairly disguise Republic Services, Inc. employees as employees of other entities, such as Defendant Browning Ferris Industries of California, Inc.” (Id. ¶15.) “On behalf of Plaintiff, I discovered the facts giving rise to the amendments from on or about June 10, 2026, through June 12, 2026.” (Id. ¶16.) “Plaintiff did not request the amendments earlier because Plaintiff was unaware that she was a Republic Services, Inc. employee because Defendant Browning Ferris Industries of California, Inc., Republic Services, Inc. and their counsel actively prevented through misdirection, deception and misrepresentation, Plaintiff from learning that she was a direct employee of Republic Services, Inc. and not Browning Ferris Industries of California, Inc. as Plaintiff was led to believe throughout her employment with Republic Services, Inc.” (Id. ¶17.)

Here, Plaintiff has satisfactorily demonstrated (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (CRC, Rule 3.1324.) This motion is based on counsel's new research, conducted after the filing of the first amended complaint. Given the policy favoring liberally granting leave to amend so that all disputed matters between the parties may be resolved, the Court finds this sufficient cause for leave to amend.

Further, Defendants have not demonstrated they will be unduly prejudiced by the filing of the third amended complaint. In opposition, Defendants state, "[t]he addition of a new defendant compresses substantial new discovery into an existing schedule, as additional discovery, including depositions, and motions will be necessary to address these claims. This results in either a forced continuance of the already scheduled trial date, or a prejudiced defense." (Opp. at p. 6:13-15.) As discussed above, an opposing party is prejudiced where the amendment would necessitate a trial delay along with a loss of critical evidence, added preparation expense, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.*, supra, 48 Cal.App.4th at p. 486-488.)

However, in *Magpali*, the Court of Appeal found denial of leave to amend was proper when a party sought leave "nearly two years after the complaint was originally filed" and the party "did not give an explanation for leaving the [proposed] claim out of the original complaint or bringing the request to amend so late." (*Magpali v. Farmers Group, Inc.*, supra, 48 Cal.App.4th at p. 486.) Importantly, *Magpali* dealt with a situation where trial was not just looming, but was set to begin. "Where the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery, refusal of leave to amend cannot be an abuse of discretion." (*Id.* at p. 488 [emphasis added].)

Here, unlike in *Magpali*, trial is still a little over nine months away. Moreover, Defendants have not demonstrated that the new allegations or party would substantially increase the burden of discovery on Defendants even with the additional factual allegations brought against Defendants. (See Conkle Decl., Exh. B at ¶¶31-48.) This Court does recognize, however, that this amendment may require a modification of the trial date given the introduction of a new party to this action. The new party will require additional time to conduct discovery and prepare for trial. Additionally, the new cause of action and/or the newly requested remedies for injunctive relief may also warrant an adjustment of the current trial date. [FN 1] This issue will be further discussed at the hearing.

Further, the Court makes no conclusion on the merits of the proposed amendment at this time. Rather, the "better course of action" is to permit the amendment, "and then let the parties test its legal sufficiency in other appropriate proceedings." (*Atkinson v. Elk Corp.*, supra, 109 Cal.App.4th at p. 760.)

Additionally, this Court also does not make any findings whatsoever at this time as to whether the allegations against the newly added party (Republic) will "relate back" to the initial date of the original Complaint for purposes of any statute of limitation, as this was not a DOE amendment. This Court also makes no findings at this time whether Plaintiff was required to file any type of administrative FEHA claim against Republic as a prerequisite to adding Republic to this lawsuit.

Accordingly, Plaintiff's Motion for Leave to file a Second Amended Complaint is GRANTED.

IT IS SO ORDERED.

Dated: July 20, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - For example, this Court may choose, in its sound discretion, to bifurcate the unfair business practice claim and/or the new request for injunctive relief, to be heard before the trial on the other claims. It is well settled that there is no jury trial right to the Ninth Cause of Action (B&P Code §17200), nor to the injunctive relief request. See, e.g., *Nationwide Biweekly Administration, Inc. v. Superior Court* (2020) 9 Cal.5th 279.